

Arvind Kumar v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another

Allahabad High Court · Division Bench · 4 July 2018 · 2018 SCC OnLine All 3484 · Writ - C No. 13938 of 2018 · **Writ petition disposed of; a fresh final assessment to be passed after hearing; recovery kept in abeyance**

HEADNOTE

A final order of assessment under Section 126(5) of the Electricity Act, 2003 read with Clause 8.1(b) of the U.P. Electricity Supply Code, 2005 must be preceded by an opportunity of hearing to the consumer. Where the purported final assessment order merely stated that the consumer's objections had been 'considered' and the order 'communicated', without any hearing, the mandatory provisions were not followed and it could safely be concluded that no valid final assessment order had been passed. The Court directed the Executive Engineer to pass a final assessment order after giving the consumer an opportunity of hearing within 15 days, and kept the recovery notice, demand notice and assessment bill in abeyance until then.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

Final assessment requires an opportunity of hearing before it is passed

QUESTION

Is an order that merely 'considers' the consumer's objections, without a hearing, a valid final assessment under s.126(5)/Clause 8.1(b)?

HOLDING

No. A final assessment under s.126(5) read with Clause 8.1(b) mandates an opportunity of hearing before it is passed. An order that only records that objections were considered and communicated, with no hearing, does not comply with the mandatory provisions, so no valid final assessment order has been passed. The Executive Engineer must pass a final assessment after affording a hearing within 15 days; the recovery/demand/bill are kept in abeyance meanwhile. ¶ 5-7

LIMITING FACTS

Theft case; provisional assessment 5.1.2018, purported final assessment 29.3.2018 for Rs. 64,44,961; the order showed no hearing was given.

PRINCIPLE TAGS

clause-8.1b-personal-hearing-mandatory-before-final-assessment

A final assessment under s.126(5)/Clause 8.1(b) is void without a prior opportunity of hearing; merely 'considering' written objections and communicating an order does not satisfy the mandatory hearing requirement. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OCCURRED AND THE QUANTUM

Left to the fresh final assessment after hearing; the Court did not decide the merits. ¶ 7